

**ONTARIO  
SUPERIOR COURT OF JUSTICE**

**B E T W E E N:**

DANIELLE ANDREASON, SARAH  
ANDREASON, KIMBERLEY ANDREASON  
and DEANNA O'NEILL

Applicants

**- and -**

THE CORPORATION OF THE CITY OF  
THUNDER BAY, WILLIAM KOSORIS,  
JOANNE KOSORIS, JEANETTE  
MESERVIA as Executrix of the Estates of  
PAUL CHICOINE and OLGA CHICOINE,  
JOHN BODNIEKS and ROACH'S TAXI  
(1988) LTD.

Respondents

*Christopher D.J. Hacio, for the Plaintiffs,*

*Dawne A. Latta, for the Defendant The  
Corporation of the City of Thunder Bay*

*Alex W. Demeo, for the Defendant, Jeanette  
Meservia as Executrix of the Estates of Paul  
Chicoine and Olga Chicoine*

**HEARD:** January 13 and 14, 2014,  
at Thunder Bay, Ontario

**Mr. Justice D.C. Shaw**

**Decision on Motion**

[1] This is a motion brought by the plaintiffs for leave to call more than three expert witnesses at trial pursuant to s. 12 of the *Evidence Act*.

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## Background

[2] The plaintiff, Danielle Andreason was injured in an accident on June 1, 2007 in the City of Thunder Bay.

[3] She was riding a bike at night when she came into collision at an intersection with a taxi. She was 15 years of age at the time. She sustained a traumatic brain injury, several fractures, a pulmonary contusion to her left lung and multiple abrasions and lacerations.

[4] An action was brought against the City of Thunder Bay, William and Jeanne Kosoris, who owned a home on the northeast corner of the intersection, Paul and Olga Chicoine, who owned a home on the northwest corner of the intersection, Roach's Taxi, which owned the taxi and John Bodnieks, the driver of the taxi. The action has been settled as against the Kosoris defendants, Roach's Taxi and Mr. Bodnieks.

[5] The trial as against the City of Thunder Bay and the Chicoine defendants was scheduled to begin on January 13, 2014, for six weeks. Liability and damages are in issue.

[6] On the opening of trial, the plaintiffs and the City brought several motions, both in writing and orally. One of the motions was the plaintiffs' motion for an order that the time for service of nine expert reports be abridged and that pursuant to rule 53.08 leave be granted allowing the plaintiffs to call experts' evidence. After hearing that motion I determined that the trial should be adjourned to provide the defendants with an opportunity to respond to certain late filed reports. Reasons on the motion to abridge time and grant leave to call experts' evidence were released on January 24, 2013.

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[7] The reasons herein deal only with the plaintiffs' motion for leave to call more than three experts under s. 12 of the *Evidence Act*.

[8] The plaintiffs initially advised that they intended to call five experts on the issue of liability and six experts on the issue of damages. However, during submissions, the plaintiffs agreed that one of the proposed experts on the issue of damages, Don Middleton, a psychological counsellor, would testify as a fact witness rather than as an expert offering an opinion.

[9] The five liability experts that the plaintiffs seek to call are:

- a. Mark Paquette. Mr. Paquette is a mechanical engineer. The plaintiffs propose to tender him as an accident reconstruction expert to provide an opinion as to the nature of the collision, the visibility of the stop sign in question, sight lines at the intersection in question and visibility for the plaintiff, Danielle Andreason, as a cyclist, and for the driver of the taxi.
- b. Robert Gilchrist. Mr. Gilchrist is a transportation engineer. The plaintiffs propose to call him to provide an opinion on whether the intersection was designed, controlled and maintained in accordance with prevailing standards and whether there was a causal relationship between the state of the intersection and the collision.
- c. Thomas Smahel. Mr. Smahel is described as a certified professional ergonomist or human factors expert. The plaintiffs propose to call him to provide an opinion as to human factor issues such as reaction and perception times in connection with the accident.

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- d. Vince Rutter. Ms. Rutter is a certified arborist. The plaintiffs propose to call Mr. Rutter to provide an opinion related to the growth rates and the condition of the trees at the intersection and how the density and height of the trees in the area would obstruct the street lighting and affect the visibility of street signs.
  - e. Justin Berubé. Mr. Berube is a certified engineering technician. The plaintiffs propose to call Mr. Berube to produce computerized renderings of the intersection as it likely appeared at 11:00 p.m. on June 1, 2007 and how it would have appeared with a white stop line and an unobstructed stop sign.

[10] The five damage experts that the plaintiffs seek to call are:

- a. Dr. Gary Hawryluk. Dr. Hawryluk is a neuropsychologist who was retained by the plaintiffs to provide a neuropsychological and psychological assessment of Ms. Andreason.
- b. Lona Beazley. Ms. Beazley is a vocational rehabilitation specialist and life care planner. She was retained by the plaintiffs to prepare a life care plan for Ms. Andreason and to estimate the costs of the plan.
- c. Dr. Bakhtiar Moazzami. Dr. Moazzami is an economist who was retained by the plaintiffs to prepare estimates of Ms. Andreason's loss of income, loss of earning capacity, loss of housekeeping capacity and costs of future care.
- d. Dr. Norman Goldberg. Dr. Goldberg is a pediatric consultant to Winnipeg's Children's Hospital Pediatric Brain Injury Team. Ms. Andreason was referred to Dr.

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Goldberg in July 2007 and was seen by him up to September 2012. The plaintiffs propose to call Dr. Goldberg to provide an opinion on Ms. Andreason's injuries, his diagnosis and prognosis.

- e. Angie Maidment. Ms. Maidment is an occupational therapist who was the case manager for Ms. Andreason from 2008 to 2011. The plaintiffs propose to call her to provide an opinion on Ms. Andreason's cognitive, physical, language, social and emotional deficiencies. They also propose to call Ms. Maidment to provide her opinion on the life long supports required by Ms. Andreason and the life care plan prepared by Ms. Beazley and the life care plan prepared by Sandra Vellone, a vocational rehabilitation specialist retained by the City.

[11] The city has retained three experts:

- a. Russell Brownlee. The City proposes to tender Mr. Bownlee as an accident reconstructionist and traffic engineer to respond to the evidence of Mr. Paquette and Mr. Gilchrist.
- b. Dr. Norman Bonsor. Dr. Bonsor is an economist. The City proposes to call Dr. Bonsor to respond to the estimates of Dr. Moazzami.
- c. Sandra Vellone. Ms. Vellone is a vocational rehabilitative specialist and life care planner. She was retained by the City to respond to the life care plan for Ms. Andreason prepared by Ms. Beazley and the costs of the plan.

[12] The Chicoine defendants had not proposed to call any expert witnesses at trial. However, during the hearing of the motions to abridge the time for service of the plaintiffs' expert reports, counsel for the Chicoine defendants indicated that he had decided not to challenge the late service of the report of Mr. Berubé because he had found an expert who could respond to the report. Counsel for the plaintiffs agreed that a report could be late served by the defendants to respond to Mr. Berubé's computerized renderings.

[13] On the motion to abridge time, I made an order that no further expert reports could be served other than expert reports on future care costs that the defendants intended to rely upon in responding to the new reports of Ms. Beazley and Ms. Maidment. I should have also made an exception for service by the defendants of a report responding to Mr. Berubé's renderings of the intersection. Paragraph [39] 3. of my January 24, 2014 Reasons shall therefore be amended to read as follows:

“3. Requiring the defendants to serve within six weeks any expert report on future care costs that they intend to rely upon, responding to those reports of Lona Beazley and Angie Maidment, and any report to respond to the report and renderings of Justin Mr. Berubé.”

[14] For the purposes of the plaintiffs' motion to call more than three experts, I will proceed on the basis that although the present number of experts for the defendants totals three, the Chicoine defendants have leave to call a future care costs expert and an expert on computerized renderings. This would give the defendants a possible total of five experts.

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## Submissions

[15] The plaintiffs submit that each of the liability experts' reports builds on the others, that if one report is removed, the remaining opinions are affected. The plaintiffs submit that this is not a situation where it is tendering experts with the same qualifications to talk about the same issues. The plaintiffs submit that any overlap among its experts is minimal. With respect to the damages experts, the plaintiffs note that Dr. Goldberg and Ms. Maidment each are treating health practitioners, not experts retained for the purposes of the litigation. Dr. Hawryluk is the only expert who can speak to the neuropsychological aspects of Ms. Andreason's brain injury. Ms. Beazley is required to provide evidence of future care costs. Dr. Moazzami is required as an economist to provide present value calculations of the claims for past and future loss of income, loss of income capacity and future care costs.

[16] The defendants submit that all the opinions of the plaintiffs' liability experts revolve around the visibility and illumination of the stop sign in question and that the five opinions duplicate one another and are overkill. The defendants point out that there are five eye witnesses to the collision, two investigating police officers and nine photographs taken of the intersection after the accident. The defendants submit that with the benefit of the evidence of these eye witnesses and police officers and with the benefit of the photographs, multiple expert opinions on the state of the intersection are not needed.

[17] The defendants' concern with the damages experts focuses on the evidence of Ms. Beazley and Ms. Maidment. The defendants submit that because both Ms. Beazley's and Ms. Maidment's reports comment on the needs of Ms. Andreason and the life plans to meet these needs, they duplicate one another and only one of them is required to give an expert opinion on

these issues. The defendants submit that Ms. Maidment's reports are not compliant with Rule 53.03. Ms. Maidment's report of November 15, 2013, which the plaintiff put forward as being Rule 53.03 compliant, contains the following information: Under the heading "instructions", it states "To assess and treat Ms. Andreason". Under the heading "opinions", it states "as set out in my reports, indexed and attached as Schedule "A". Under the heading "reasons", it states "My opinion is based on my expertise, my assessment of Ms. Andreason and my review of the medical reports indexed and attached as Schedule "B". Schedule "A" refers to "Case Reports", "School Recommendations" and "Team Meetings" totalling 78 pages. There is nothing listed in Schedule "B".

[18] The defendants submit that the plaintiffs should be limited to one or two liability reports. They submit that Dr. Hawryluk, Dr. Goldberg, Dr. Moazzami and one of either Ms. Beazley or Ms. Maidment should be permitted to testify on damages.

### **Discussion**

[19] Section 12 of the *Evidence Act* provides:

"Where it is intended by a party to examine as witnesses persons entitled according to the law or practice, to give opinion evidence, not more than three of such witnesses may be called upon either side, without the leave of the judge or other person presiding."

[20] Both the plaintiffs and the defendants refer to the factors set out in *Burgess (Litigation guardian of) v. Wu*, [2005] O.J. No. 929 (S.C.J.), at para. 35, which Ferguson J. found should be considered in that particular case. As Ferguson J. notes, motions of this nature are fact driven and it is not possible to identify a fixed list of relevant factors. The factors have been



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summarized by D.A. Wilson J. in *Hoang (litigation Guardian of) v. Vicentini*, 2013 ONSC 1066, at para. 9:

- (a) Whether the opposing party objects to leave being granted;
- (b) The number of expert subjects in issue;
- (c) The number of experts each side proposes to have opine on each subject;
- (d) How many experts are customarily called in cases with similar issues;
- (e) Whether the opposing party will be disadvantaged if leave is granted because the applying party will then have more experts than the opposing party;
- (f) Whether it is necessary to call more than three experts in order to adduce evidence on the issues in dispute;
- (g) How much duplication there is in the proposed opinions of different experts;
- (h) Whether the time and cost involved in calling the additional experts is disproportionate to the amount at stake in the trial.

[21] Liability for the accident is seriously contested.

[22] In summary, as against the City, the plaintiffs allege that inadequate lighting and markings at the intersection in question, together with overhanging foliage from a tree on the Chicoine property adjacent to the stop sign, caused Ms. Andreason to miss the intersection and stop sign and so that she rode her bicycle into the path of the taxi coming into the intersection on a through street from her left. The plaintiffs allege that the City failed to adhere to provisions of the *Municipal Act* and to its by-laws, policies and governing guidelines.

[23] The plaintiffs allege that the Chicoine defendants failed to maintain and inspect the trees on their property and to comply with the City's by-laws concerning their trees.

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[24] Ms. Andreason has no memory of the accident or of the events immediately leading up to it.

[25] On the issue of damages, there will be substantial evidence about Ms. Andreason's brain injury and deficits. The damages claimed are significant. Ms. Beazley, for the plaintiffs, estimates future care costs alone at between \$1.5 million and \$3.5 million. Ms. Vellone, for the City, estimate future care costs at approximately \$800,000.

[26] With respect to liability, I was provided with the reports of Mr. Paquette, Mr. Gilchrist, Mr. Smahel, Mr. Rutter and Mr. Berubé. There is considerable overlap among those five individuals when they provide their opinions about the visibility of the intersection and the stop sign. However, I am satisfied that each of them has a distinct area of expertise.

[27] At trial, I will be in a position to control evidence which unnecessarily overlaps on the issue of visibility and illumination of the stop sign. The experts will be required to confine themselves to their fields of expertise. The evidence will have to meet the criteria for admissibility as set out in *R v. Mohan* [1994] 2 S.C.R. 9 (S.C.C.), namely, a properly qualified expert, relevance, necessity to assist the trier of fact, reliability and the absence of an exclusionary rule.

[28] I accept the plaintiffs' submission that because Ms. Andreason will not be able to testify as to what happened, the plaintiffs will have to rely heavily on their experts to prove liability for the accident: Mr. Paquette on reconstruction evidence relevant to the actual collision; Mr. Gilchrist on relevant safety standards; Mr. Smahel on the standard of care through "human factors" evidence; Mr. Rutter on when trees were likely trimmed; Mr. Berubé depicting

renderings of the intersection on the evening of the accident, as it was and as the plaintiffs allege it should have been.

[29] With respect to the evidence on damages, Ms. Beazley, as a vocational rehabilitation specialist, has a different expertise than Ms. Maidment, as a treating occupational therapist and team coordinator. Counsel for the plaintiffs advises that he intends to have Ms. Maidment critique the recommendations of Ms. Beazley and Ms. Vellone. He stated that he will not rely on Ms. Maidment for costing future care, although I am under the impression that she may have commented in her reports about costing. Subject to my comments which follow about Rule 53.03 compliance, I see no reason to prevent Ms. Maidment from testifying as an expert, if qualified at trial in her areas of expertise, namely as an occupational therapist and team coordinator. However, I understand that she is not a life care planner or a vocational rehabilitation expert. At trial I would not be inclined to allow her to give opinion evidence on Ms. Beazley's and Ms. Vellone's life care plans that was properly the evidence of a life care planner or a vocational rehabilitative expert. Like any of the other experts, she would have to confine her opinions to areas in which she had been qualified as an expert.

[30] In my reasons of January 24, 2014 on the plaintiffs' motion to abridge time for serving expert reports, I found that Ms. Maidment's November 15, 2013 report was not compliant with Rule 53.03. If the plaintiffs wish to tender Ms. Maidment as an expert on the areas of occupational therapy and team coordination, they will be required to file a Rule 53.03 compliant report from Ms. Maidment. Leave is granted to the plaintiffs to serve a Rule 53.03 compliant report from Ms. Maidment by April 15, 2014. Failing compliance, she may, of course, as a treating health practitioner, testify as a fact witness.

[31] I appreciate that the plaintiffs propose to tender 10 experts, compared to the three, and possibly five that the defendants propose to call. However, the defendants do not propose to call any medical experts, whereas the plaintiffs must call medical evidence to prove their damages. The plaintiffs should not be penalized because the defendants have chosen not to call medical evidence. The difference in numbers really comes down to the fact that the plaintiffs propose to call five liability experts, whereas the defendants propose to call two (Mr. Brownlee and an expert responding to Mr. Berubé's late served report). Because Ms. Andreason herself can give no evidence on the cause of the accident, the prejudice to the plaintiffs in denying the three additional liability experts outweighs any prejudice to the defendants. I see little prejudice to the defendants if, as a trial judge sitting without a jury, in the context of this particular case, I hear from more experts for the plaintiffs than for the defendants. It is only the substance of the expert evidence that will be weighed, not the number of experts. The defendants have not articulated any actual prejudice that they are concerned will befall them.

[32] I do not see anything unusual in a case of this magnitude in calling an accident reconstructionist, a transportation engineer, a human factors expert and an engineering technologist who has prepared a computerized rendering of the accident site. I accept that an arborist is an unusual expert to see in a personal injury case, but counsel for the Chicoine defendants has advised that the question of whether the Chicoines' trees were trimmed is very much a contested issue in this case. I also do not see the number of damage experts to be remarkable in a case such as this – a pediatrician, a neuropsychologist, an occupational therapist, a vocational rehabilitation expert and an economist. In my experience, these experts would customarily be called in a serious personal injury action.

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## Conclusion

[33] For the reasons given, I grant leave to the plaintiffs to tender Mr. Paquette, Mr. Gilchrist, Mr. Smahel, Mr. Rutter, Mr. Berubé, Dr. Goldberg, Dr. Hawryluk, Ms. Beazley and Dr. Moazzami as experts at trial. I also grant leave to the plaintiffs to tender Ms. Maidment as an expert provided that she serves a Rule 53.03 compliant report by April 15, 2014. These experts, of course, must be qualified at trial to give opinion evidence in the areas of their expertise before their opinions will be admissible. As with all experts, their opinion evidence must be confined to their respective areas of expertise and meet the criteria set out in *Mohan*.

## Costs

[34] If the parties are unable to agree on the costs of this motion, they shall arrange a date with the Trial Coordinator to speak to the issue, to be heard at the same time as any submissions on costs of the motion to abridge the time for serving expert reports in accordance with my reasons released on January 24, 2014.

“Original Signed By”  
The Hon. Mr. Justice D.C. Shaw

**Released:** January 30, 2014

**CITATION:** Andreason v. The Corporation of the City of Thunder Bay, 2014 ONSC 709

**COURT FILE NO.:** CV-09-0044

**DATE:** 2014-01-30

**ONTARIO**

**SUPERIOR COURT OF JUSTICE**

**B E T W E E N:**

DANIELLE ANDREASON, SARAH  
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Respondents

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**DECISION ON MOTION**

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Shaw, J

**Released:** January 30, 2014

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